

Information Technology Act, 2000

By Avinash Verma

Information Technology Act, 2000

- The **Information Technology Act, 2000 (IT Act, 2000)** is India's primary cyber law that governs **electronic transactions, digital signatures, cybercrimes, cybersecurity, electronic governance, and protection of computer systems and networks**. It was enacted by the Parliament of India on **9 June 2000** and came into force on **17 October 2000**. The Act was substantially amended through the **Information Technology (Amendment) Act, 2008**, which introduced many cybersecurity-related provisions to address modern cyber threats.
- The Act provides legal recognition to electronic records, electronic signatures, digital commerce, and defines various cyber offences, penalties, and responsibilities of organizations, intermediaries, and government agencies.

Objectives of the IT Act, 2000

- The primary objective of the IT Act is to provide a **legal framework for conducting business electronically while ensuring the security of computer systems and networks.**
- It aims to facilitate **electronic governance (e-Governance)**, promote e-commerce, prevent cybercrime, recognize digital signatures, protect sensitive information, establish mechanisms for cyber incident response, and define punishments for offences committed using computers and communication networks.
- The Act also empowers government agencies to investigate cyber offences and protect critical information systems.

Section 43 – Penalty and Compensation for Damage to Computer Systems

- Section 43 deals with unauthorized access and damage caused to computer systems. A person who accesses a computer, downloads data, introduces malware, causes denial of service attacks, disrupts services, destroys information, or assists another person in doing so without the owner's permission is liable to pay compensation to the affected party. This section mainly addresses civil liability rather than criminal punishment.
- Examples include:
 - Unauthorized access to a company's server
 - Downloading confidential files
 - Spreading ransomware
 - Deleting organizational databases
 - Launching a Denial-of-Service (DoS) attack
- This section is frequently invoked during data breach investigations and cyber fraud cases.

Section 43A – Compensation for Failure to Protect Data

- Section 43A is one of the most important cybersecurity provisions for organizations. **It states that if a company handling sensitive personal data fails to implement reasonable security practices and this negligence causes wrongful loss or wrongful gain, the company is liable to compensate the affected individuals.**
- This section introduced the concept of organizational cybersecurity responsibility. Companies are expected to implement:
 - Information Security Policies
 - Risk Assessment
 - Access Control
 - Encryption
 - Network Security
 - Incident Response
 - Security Audits
 - ISO 27001 or equivalent security controls
- This section laid the foundation for modern data protection requirements in India.

Section 65 – Tampering with Computer Source Documents

- Section 65 makes it a criminal offence to knowingly conceal, destroy, alter, or modify computer source code that is legally required to be maintained.
- Examples include:
 - Deleting application source code
 - Modifying software logs
 - Removing evidence during a cyber investigation
 - Altering banking software source code
- Punishment:
 - Up to **3 years imprisonment**
 - Fine up to **₹2 lakh**

Section 66 – Computer Related Offences

- Section 66 converts many offences under Section 43 into criminal offences when committed dishonestly or fraudulently.
- Examples include:
 - Hacking
 - Unauthorized access
 - Data theft
 - Malware attacks
 - Database modification
 - Website defacement
- Punishment:
 - Up to **3 years imprisonment**
 - Fine up to **₹5 lakh**
- Or both.

Section 66B – Receiving Stolen Computer Resource

- This section punishes anyone who dishonestly receives or retains stolen computers, laptops, mobile devices, hard disks, passwords, databases, or any stolen computer resource knowing that it has been obtained illegally.
- Example:
 - Purchasing a stolen laptop containing confidential corporate information.
- Punishment:
 - Up to **3 years imprisonment**
 - Fine up to **₹1 lakh**
 - Or both.

Section 66C – Identity Theft

- Section 66C deals with identity theft involving digital identities.
- Examples include:
 - Password theft
 - Digital Signature theft
 - Aadhaar misuse
 - Stealing OTPs
 - Using someone else's login credentials
- Punishment:
 - Up to **3 years imprisonment**
 - Fine up to **₹1 lakh**
 - Or both.

Section 66D – Cheating by Personation Using Computer Resources

- This section covers online fraud committed by impersonating another individual.
- Examples:
 - Online banking fraud
 - UPI scams
 - Fake customer care numbers
 - Phishing websites
 - Fake job offers
 - Romance scams
- Punishment:
 - Up to **3 years imprisonment**
 - Fine up to **₹1 lakh**
- Or both.

Section 66E – Violation of Privacy

- Section 66E criminalizes capturing, publishing, or transmitting images of a person's private area without consent.
- Examples:
 - Hidden camera recordings
 - Revenge pornography
 - Secret mobile recordings
- Punishment:
 - Up to **3 years imprisonment**
 - Fine up to **₹2 lakh**
 - Or both.

Section 66F – Cyber Terrorism

- Section 66F is among the most serious provisions of the Act. It applies when cyber attacks threaten India's sovereignty, integrity, security, defence, or critical infrastructure.
- Examples include:
 - Attacking military networks
 - Power grid attacks
 - Nuclear facility attacks
 - Banking infrastructure attacks
 - Air traffic control attacks
- Punishment:
 - **Imprisonment for life.**

Section 67 – Publishing Obscene Material

- This section prohibits publishing or transmitting obscene electronic content.
- Examples:
 - Pornographic websites
 - Obscene social media posts
 - Distribution of explicit videos
- Punishment:
 - First conviction: up to **3 years imprisonment** and fine.
 - Subsequent convictions: higher imprisonment and fines.

Section 67A – Sexually Explicit Material

- Section 67A specifically covers electronic publication or transmission of sexually explicit material and carries stricter penalties than Section 67.
- Examples include sharing sexually explicit videos or images without authorization.
- Punishment:
 - Up to **5 years imprisonment** for the first conviction, with enhanced penalties for subsequent offences.

Section 67B – Child Pornography

- This section criminalizes creation, browsing, downloading, publishing, transmitting, advertising, or distributing child sexual abuse material.
- Examples include:
 - Sharing child abuse videos
 - Downloading child pornography
 - Creating child exploitation websites
- Punishment includes imprisonment and substantial fines, with enhanced punishment for repeat offences.

Section 67C – Retention of Information by Intermediaries

- Intermediaries such as ISPs, social media platforms, cloud providers, and other online services must preserve specified information for investigation and legal purposes. Failure to retain required data can result in penalties.

Section 69 – Interception, Monitoring and Decryption

- The Central or State Government may authorize interception, monitoring, or decryption of information transmitted through computer resources in specified circumstances, such as national security, public order, or prevention of offences.
- Organizations and service providers are legally required to assist when valid orders are issued.

Section 69A – Blocking of Websites

- This section empowers the Central Government to block public access to websites, web pages, applications, or online content when necessary for reasons such as national security, sovereignty, public order, or preventing incitement to offences.
- Examples include blocking websites involved in:
 - Terrorism
 - Fake news affecting national security
 - Child sexual abuse material
 - Illegal gambling
 - Piracy

Section 69B – Traffic Monitoring for Cybersecurity

- Section 69B authorizes monitoring and collection of traffic data related to computer resources for cybersecurity purposes, including detection, analysis, and prevention of cyber attacks against national information infrastructure.

Section 70 – Protected Systems

- The government may declare certain computer systems as **Protected Systems** (often part of Critical Information Infrastructure). Unauthorized access to such systems is a serious offence.
- Examples include:
 - Defence networks
 - Nuclear facilities
 - Power grids
 - Government data centres
 - Banking infrastructure
 - Only authorized personnel may access these systems.

Section 70A – National Nodal Agency

- Section 70A provides for a national nodal agency responsible for protecting Critical Information Infrastructure (CII). This agency coordinates national cybersecurity efforts and develops strategies to safeguard vital systems.

Section 70B – CERT-In

- Section 70B establishes the **Indian Computer Emergency Response Team (CERT-In)** as India's national cyber incident response agency. CERT-In is responsible for:
 - Issuing cybersecurity advisories
 - Coordinating incident response
 - Collecting cyber threat intelligence
 - Managing vulnerability reporting
 - Conducting cyber awareness programs
 - Supporting organizations during cyber incidents
- CERT-In plays a central role in India's cybersecurity ecosystem.

Section 71 – Misrepresentation

- This section penalizes obtaining any license, certificate, or authorization under the IT Act by making false statements or suppressing material facts.
- Example: Submitting forged documents to obtain a Digital Signature Certificate.

Section 72 – Breach of Confidentiality and Privacy

- Any person who gains access to electronic records, information, or documents under powers granted by the Act and discloses them without authorization is punishable.
- Example: A government officer leaking confidential citizen records obtained during an investigation.

Section 72A – Disclosure of Information in Breach of Lawful Contract

- A service provider or organization that discloses personal information obtained under a lawful contract without the consent of the individual, intending wrongful gain or causing wrongful loss, can be punished.
- Example: A company selling customer information to advertisers without authorization.

Section 79 – Safe Harbour for Intermediaries

- Intermediaries such as internet service providers, cloud platforms, social media companies, and online marketplaces are generally protected from liability for third-party content if they:
- Act only as intermediaries,
- Exercise due diligence,
- Follow applicable legal requirements, and
- Comply with lawful government or court directions.
- Failure to meet these obligations can result in

Section 80 – Search, Seizure and Arrest

- Authorized police officers (generally of the prescribed rank or above) may investigate offences under the IT Act and, subject to the Act's provisions, exercise powers of search, seizure, and arrest in connection with cybercrime investigations.

Section 81 – Overriding Effect

- The provisions of the IT Act prevail over inconsistent provisions in other laws, except where another law expressly provides otherwise. This ensures that cyber-related legal issues are primarily governed by the IT Act.

Section 85 – Offences by Companies

- Where a company commits an offence under the IT Act, both the company and the persons responsible for its conduct (such as directors, managers, or officers) may be held liable if the offence occurred with their consent, connivance, or due to negligence.